

25STCV11706 25STCV11706

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 25STCV11706 Hearing Date: June 24, 2026 Dept: 617

Dept.

617

Date:

6-24-26

Case

#: 25STCV11706

Trial

Date: N/A

VACATE DEFAULT JUDGMENT

MOVING

PARTY: Defendant, Jesus Adrian Carrizoza

RESPONDING

PARTY: Unopposed/Plaintiff, Juan Manuel Vargas

RELIEF

REQUESTED

Motion

to Vacate Default Judgment

SUMMARY

OF ACTION

Plaintiff

Juan Manuel Vargas purchased 2 mobile homes from Defendant Jesus Adrian

Carrizosa. Plaintiff alleges that Defendant failed to convey title,

registration, or ownership of the mobile homes to him. Default judgment was

entered against Defendant on January 27, 2026.

RULING: Granted.

Defendant

moves to vacate the default and default judgment entered against him on grounds

of improper service and lack of actual notice. The Court does not consider

Plaintiff's 7-court day late opposition because of prejudice to Defendant's

ability to respond. (See Code Civ. Proc., § 1005, subd. (b).) Because Defendant

establishes he lacked actual notice of the instant action, Defendant's motion

is granted.

A

court may set aside any void judgment or order. (Code Civ. Proc., § 473, subd.

(d.) “[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) Where service is proper but does not result in actual notice to a party in time to defend the action, a court has discretion to grant relief from a default judgment. (Code Civ. Proc., § 473.5; Anastos v. Lee (2004) 118 Cal.App.4th 1314, 1319.) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).) The motion must be accompanied by “an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Id. § 473.5, subd. (b).)

Defendant

first argues that the default judgment should be vacated because he was served at his business address rather than his residence. In lieu of personal service, a party may be served via substituted service “by leaving a copy of the summons

and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).) The proof of service of a registered process server creates a rebuttable presumption that service was proper. (Evid. Code, § 647.)

Defendant

was properly served via substituted service. The proof of service was completed by a registered process server and indicated that service was made at Defendant's usual place of business at 11420 Long Beach Blvd, Lynwood, CA 90262. Service was made by leaving a copy of the summons and complaint with "Bille N.," the person apparently in charge at the business. The process server also submitted a "Declaration of Due Diligence" showing that personal service was attempted on April 24 and 29, 2025, before leaving the papers with Bille on May 3, 2025. While Defendant avers in his declaration that Bille is not one of

his employees but works in the neighboring barbershop, this is insufficient to establish that Bille was not a “person apparently in charge.” Defendant admits that the place of service was his business address [Carrizosa Decl. ¶ 3] and the Declaration of Due Diligence states that on both April 24 and 29 Bille was present at the address and knew whether Defendant was in or out of the premises. Based on these facts, the process server could reasonably deem that Bille was apparently in charge at the business and that Bille was “reasonably likely” to deliver the documents to Defendant. (Chinese Theater, LLC v. Starline Tours USA, Inc. (2025) 115 Cal.App.5th 1048, 1059-60.) Service on Defendant was therefore proper.

Defendant

next contends that the default and default judgment should be set aside because he did not receive actual notice of the suit. He states in his declaration that he “never received a Summons, Complaint, or any other lawsuit papers in this case” and that he only found out about the action on January 29, 2026 when he went to the courthouse to file a restraining and searched his name in the court system. [Carrizosa Decl. ¶¶ 2, 5.] On that same day, he requested a fee waiver and a copy of the entire case file and filed the instant motion 2 weeks later on February 13, 2026. [See id. ¶ 6.] These facts indicate that Defendant’s lack of actual notice was due to some failure in the method of service to

provide him knowledge of the action and not because of any avoidance of service
or inexcusable neglect on his behalf. Defendant's motion is therefore granted,
and the default and default judgment are vacated.

Defendant

to separately file the proposed answer within 10 days.

Defendant

to give notice.